

CONSTITUTIONAL INTERPRETATION DOCTRINES

METHOD BEFORE DOCTRINE → SEVERABILITY, ECLIPSE AND WAIVER → PITH, ANCILLARY POWER AND... → TERRITORIAL NEXUS → ARTICLE 254 REPUGNANCY AND... → HARMONY, READING AND INVALIDITY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 METHOD BEFORE DOCTRINE

METHOD BEFORE DOCTRINE BINDING PRECEDENT. FACTS MUST SATISFY EVERY OPERATIVE ELEMENT. FREE-STANDING ARTICLE OR SLOGAN.

CONSTITUTIONAL BASIS / ARTICLE

- TEXT → STRUCTURE → HISTORY → PURPOSE → BINDING PRECEDENT.
- TRIGGER → TEST → CASE/YEAR → EFFECT → LIMIT → REMEDY.

POWER / PROCEDURE

- APPLICATION → facts must satisfy every operative element.
- DOCTRINE != free-standing Article or slogan.

CHECK / LIMIT

- TEXT → STRUCTURE → HISTORY → PURPOSE → BINDING PRECEDENT.
- TRIGGER → TEST → CASE/YEAR → EFFECT → LIMIT → REMEDY.

FEDERAL / RIGHTS IMPACT

- APPLICATION → facts must satisfy every operative element.
- DOCTRINE != free-standing Article or slogan.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: APPLICATION → facts must satisfy every operative element.

01

STAGE 01 SEVERABILITY, ECLIPSE AND WAIVER

SEVERABILITY, ECLIPSE AND WAIVER R.M.D. CHAMARBAUGWALA V. UNION OF INDIA (1957) SEPARABLE WORKABLE REMAINDER. BHIKAJI NARAIN DHAKRAS (1955) PRE-CONSTITUTION LAW DORMANT TO CONFLICT EXTENT. BASHESHA NATH (1958)

CONSENT CANNOT VALIDATE UNCONSTITUTIONAL STATE ACTION. OBJECT CHECK

R.M.D. Chamarbaugwala v. Union of India (1957) → separable workable remainder.

Bhikaji Narain Dhakras (1955) → pre-Constitution law dormant to conflict extent.

Bashesha Nath (1958) → consent cannot validate unconstitutional State action.

OBJECT CHECK → part of law / enforceability / individual consent.

CONSTITUTIONAL BASIS / ARTICLE

- R.M.D. Chamarbaugwala v. Union of India (1957) → separable workable remainder.
- Bhikaji Narain Dhakras (1955) → pre-Constitution law dormant to conflict extent.

POWER / PROCEDURE

- Bashesha Nath (1958) → consent cannot validate unconstitutional State action.
- OBJECT CHECK → part of law / enforceability / individual consent.

CHECK / LIMIT

- R.M.D. Chamarbaugwala v. Union of India (1957) → separable workable remainder.
- Bhikaji Narain Dhakras (1955) → pre-Constitution law dormant to conflict extent.

FEDERAL / RIGHTS IMPACT

- Bashesha Nath (1958) → consent cannot validate unconstitutional State action.
- OBJECT CHECK → part of law / enforceability / individual consent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: OBJECT CHECK → part of law / enforceability / individual consent.

02

STAGE 02 PITH, ANCILLARY POWER AND COLOURABILITY

PITH, ANCILLARY POWER AND COLOURABILITY PRAFULLA KUMAR MUKHERJEE (1947) TRUE NATURE AND CHARACTER. STATE OF BOMBAY V. F.N. BALSARA (1951) INCIDENTAL OVERLAP EFFECTIVE ENTRY. K.C. GAJAPATI NARAYAN DEO (1953) DISGUISED LACK OF COMPETENCE.

Prafulla Kumar Mukherjee (1947) → true nature and character.

State of Bombay v. F.N. Balsara (1951) → incidental overlap / effective entry.

K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.

MOTIVE alone is insufficient.

CONSTITUTIONAL BASIS / ARTICLE

- Prafulla Kumar Mukherjee (1947) → true nature and character.
- State of Bombay v. F.N. Balsara (1951) → incidental overlap / effective entry.

POWER / PROCEDURE

- K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.
- MOTIVE alone is insufficient.

CHECK / LIMIT

- Prafulla Kumar Mukherjee (1947) → true nature and character.
- State of Bombay v. F.N. Balsara (1951) → incidental overlap / effective entry.

FEDERAL / RIGHTS IMPACT

- K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.
- MOTIVE alone is insufficient.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.

03

STAGE 03 TERRITORIAL NEXUS

TERRITORIAL NEXUS ART 245 TERRITORIAL COMPETENCE. STATE OF BOMBAY V. R.M.D. CHAMARBAUGWALA (1957) REAL AND SUFFICIENT NEXUS. CONNECTION BETWEEN STATE, SUBJECT AND IMPOSED LIABILITY/OPERATION. REMOTE OR ILLUSORY NEXUS FAILS.

CONSTITUTIONAL BASIS / ARTICLE

- ART 245 → territorial competence.
- State of Bombay v. R.M.D. Chamarbaugwala (1957) → real and sufficient nexus.

POWER / PROCEDURE

- TEST: connection between State, subject and imposed liability/operation.
- REMOTE OR ILLUSORY nexus fails.

CHECK / LIMIT

- ART 245 → territorial competence.
- State of Bombay v. R.M.D. Chamarbaugwala (1957) → real and sufficient nexus.

FEDERAL / RIGHTS IMPACT

- TEST: connection between State, subject and imposed liability/operation.
- REMOTE OR ILLUSORY nexus fails.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TEST: connection between State, subject and imposed liability/operation.

04

STAGE 04 ARTICLE 254 REPUGNANCY AND OCCUPIED FIELD

ARTICLE 254 REPUGNANCY AND OCCUPIED FIELD DEEP CHAND V. STATE OF UTTAR PRADESH (1959) +... SAME CONCURRENT FIELD ACTUAL INCONSISTENCY EXHAUSTIVE SCHEME UNION PRIORITY. ART 254(1) EFFECT STATE LAW VOID ONLY TO THE EXTENT OF REPUGNANCY.

CONSTITUTIONAL BASIS / ARTICLE

- Deep Chand v. State of Uttar Pradesh (1959) + M. Karunanidhi v. Union of India (1979).
- SAME CONCURRENT FIELD → actual inconsistency / exhaustive scheme → Union priority.

POWER / PROCEDURE

- ART 254(1) EFFECT → State law void only to the extent of repugnancy.
- ART 254(2) ASSENT → State prevalence; no cure for incompetence; Parliament may override.

CHECK / LIMIT

- Deep Chand v. State of Uttar Pradesh (1959) + M. Karunanidhi v. Union of India (1979).
- SAME CONCURRENT FIELD → actual inconsistency / exhaustive scheme → Union priority.

FEDERAL / RIGHTS IMPACT

- ART 254(1) EFFECT → State law void only to the extent of repugnancy.
- ART 254(2) ASSENT → State prevalence; no cure for incompetence; Parliament may override.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ART 254(2) ASSENT → State prevalence; no cure for incompetence; Parliament may override.

05

STAGE 05 HARMONY, READING AND INVALIDITY

HARMONY, READING AND INVALIDITY IN RE KERALA EDUCATION BILL (1958) MEANINGFUL RECONCILIATION. KEDAR NATH SINGH (1962) READING DOWN WITHIN TEXT. READING INTO STRONG CONSTITUTIONAL BASIS; CANNOT CREATE A COMPLETE CODE. ONLY AFTER SAVING CONSTRUCTION FAILS.

In re Kerala Education Bill (1958) → meaningful reconciliation.

Kedar Nath Singh (1962) → reading down within text.

READING INTO → strong constitutional basis; cannot create a complete code.

SEVER / STRIKE → only after saving construction fails.

CONSTITUTIONAL BASIS / ARTICLE

- In re Kerala Education Bill (1958) → meaningful reconciliation.
- Kedar Nath Singh (1962) → reading down within text.

POWER / PROCEDURE

- READING INTO → strong constitutional basis; cannot create a complete code.
- SEVER / STRIKE → only after saving construction fails.

CHECK / LIMIT

- In re Kerala Education Bill (1958) → meaningful reconciliation.
- Kedar Nath Singh (1962) → reading down within text.

FEDERAL / RIGHTS IMPACT

- READING INTO → strong constitutional basis; cannot create a complete code.
- SEVER / STRIKE → only after saving construction fails.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SEVER / STRIKE → only after saving construction fails.

06

STAGE 06 TIME, AMENDMENT AND BASIC STRUCTURE

TIME, AMENDMENT AND BASIC STRUCTURE I.C. GOLAKNATH (1967) REASONED PROSPECTIVE OVERRULING. KESAVANANDA BHARATI (1973) ARTICLE 368 CANNOT DAMAGE BASIC STRUCTURE. MINERVA MILLS (1980) LIMITED AMENDING POWER + PART III/IV HARMONY.

I.C. Golaknath (1967) → reasoned prospective overruling.

Kesavananda Bharati (1973) → Article 368 cannot damage basic structure.

Minerva Mills (1980) → limited amending power + Part III/IV harmony.

INTERPRETATION != AMENDMENT.

CONSTITUTIONAL BASIS / ARTICLE

- I.C. Golaknath (1967) → reasoned prospective overruling.
- Kesavananda Bharati (1973) → Article 368 cannot damage basic structure.

POWER / PROCEDURE

- Minerva Mills (1980) → limited amending power + Part III/IV harmony.
- INTERPRETATION != AMENDMENT.

CHECK / LIMIT

- I.C. Golaknath (1967) → reasoned prospective overruling.
- Kesavananda Bharati (1973) → Article 368 cannot damage basic structure.

FEDERAL / RIGHTS IMPACT

- Minerva Mills (1980) → limited amending power + Part III/IV harmony.
- INTERPRETATION != AMENDMENT.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Minerva Mills (1980) → limited amending power + Part III/IV harmony.

07

STAGE 07 EQUALITY STANDARDS AND PROPORTIONALITY

EQUALITY STANDARDS AND PROPORTIONALITY RAM KRISHNA DALMIA (1958) REBUTTABLE VALIDITY PRESUMPTION. E.P. ROYAPPA (1973) MODERN DENTAL COLLEGE (2016) STRUCTURED PROPORTIONALITY. SHAYARA BANO V. UNION OF INDIA (2017) MANIFEST ARBITRARINESS.

CONSTITUTIONAL BASIS / ARTICLE

- Ram Krishna Dalmia (1958) → rebuttable validity presumption.
- E.P. Royappa (1973) → arbitrariness/equality.

POWER / PROCEDURE

- Modern Dental College (2016) → structured proportionality.
- Shayara Bano v. Union of India (2017) → manifest arbitrariness.

CHECK / LIMIT

- K.S. Puttaswamy (2017) + Anuradha Bhasin (2020) → rights justification.
- Ram Krishna Dalmia (1958) → rebuttable validity presumption.

FEDERAL / RIGHTS IMPACT

- E.P. Royappa (1973) → arbitrariness/equality.
- Modern Dental College (2016) → structured proportionality.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: K.S. Puttaswamy (2017) + Anuradha Bhasin (2020) → rights justification.

08

STAGE 08 MORALITY, TRANSFORMATION AND RELIGION

MORALITY, TRANSFORMATION AND RELIGION NAVTEJ SINGH JOHAR V. UNION OF INDIA (2018) CONSTITUTIONAL MORALITY + TRANSFORMATION. SHIRUR MUTT (1954) RELIGIOUS/SECULAR DISTINCTION. INDIAN YOUNG LAWYERS ASSOCIATION (2018) EQUALITY, DIGNITY AND RELIGION CONFLICT. PENDING REVIEW/REFERENCE

CONSTITUTIONAL BASIS / ARTICLE

- Navtej Singh Johar v. Union of India (2018) → constitutional morality + transformation.
- Shirur Mutt (1954) → religious/secular distinction.

POWER / PROCEDURE

- Indian Young Lawyers Association (2018) → equality, dignity and religion conflict.
- PENDING review/reference != changed holding.

CHECK / LIMIT

- Navtej Singh Johar v. Union of India (2018) → constitutional morality + transformation.
- Shirur Mutt (1954) → religious/secular distinction.

FEDERAL / RIGHTS IMPACT

- Indian Young Lawyers Association (2018) → equality, dignity and religion conflict.
- PENDING review/reference != changed holding.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Indian Young Lawyers Association (2018) → equality, dignity and religion conflict.

09

STAGE 09 ADMINISTRATION AND TEXTUAL RESTRAINT

ADMINISTRATION AND TEXTUAL RESTRAINT SHAMSHER SINGH (1974) PLEASURE/RESPONSIBLE GOVERNMENT. MOTILAL PADAMPAT SUGAR MILLS (1978) PROMISSORY ESTOPPEL LIMITS. NAVJYOTI COOPERATIVE GROUP HOUSING (1992) LEGITIMATE EXPECTATION. PADMA SUNDARA RAO (2002)

Shamsher Singh (1974) → pleasure/responsible government.

Motilal Padampat Sugar Mills (1978) → promissory estoppel limits.

Navjyoti Cooperative Group Housing (1992) → legitimate expectation.

Padma Sundara Rao (2002) → casus omissus restraint.

CONSTITUTIONAL BASIS / ARTICLE

- Shamsher Singh (1974) → pleasure/responsible government.
- Motilal Padampat Sugar Mills (1978) → promissory estoppel limits.

POWER / PROCEDURE

- Navjyoti Cooperative Group Housing (1992) → legitimate expectation.
- Padma Sundara Rao (2002) → casus omissus restraint.

CHECK / LIMIT

- Shamsher Singh (1974) → pleasure/responsible government.
- Motilal Padampat Sugar Mills (1978) → promissory estoppel limits.

FEDERAL / RIGHTS IMPACT

- Navjyoti Cooperative Group Housing (1992) → legitimate expectation.
- Padma Sundara Rao (2002) → casus omissus restraint.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Padma Sundara Rao (2002) → casus omissus restraint.

10

STAGE 10 PRECEDENT, BENCH STRENGTH AND ARTICLE 142

PRECEDENT, BENCH STRENGTH AND ARTICLE 142 ARTICLE 141 BINDING RATIO; DISTINGUISH OR REFER. SUPREME COURT BAR ASSOCIATION (1998) ARTICLE 142 CANNOT DISREGARD SUBSTANTIVE LAW. SMALLER BENCH NO SILENT OVERRULING. PERSUASIVE, NOT AUTOMATICALLY BINDING.

ARTICLE 141 → binding ratio; distinguish or refer.

Supreme Court Bar Association (1998) → Article 142 cannot disregard substantive law.

SMALLER BENCH → no silent overruling.

OBITER → persuasive, not automatically binding.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 141 → binding ratio; distinguish or refer.
- Supreme Court Bar Association (1998) → Article 142 cannot disregard substantive law.

POWER / PROCEDURE

- SMALLER BENCH → no silent overruling.
- OBITER → persuasive, not automatically binding.

CHECK / LIMIT

- ARTICLE 141 → binding ratio; distinguish or refer.
- Supreme Court Bar Association (1998) → Article 142 cannot disregard substantive law.

FEDERAL / RIGHTS IMPACT

- SMALLER BENCH → no silent overruling.
- OBITER → persuasive, not automatically binding.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Supreme Court Bar Association (1998) → Article 142 cannot disregard substantive law.

11

STAGE 11 UPSC INTEGRATED DECISION TREE

UPSC INTEGRATED DECISION TREE 1 COMPETENCE ART 254. 2 MEANING 3 RIGHTS 4 INVALIDITY READ DOWN 5 TIME + AUTHORITY

1 COMPETENCE → pith / colour / nexus / Art 254.

2 MEANING → harmony / purpose / precedent.

3 RIGHTS → equality / proportionality.

4 INVALIDITY → read down / sever / strike.

5 TIME + AUTHORITY → prospective effect / Article 141.

CONSTITUTIONAL BASIS / ARTICLE

- 1 COMPETENCE → pith / colour / nexus / Art 254.
- 2 MEANING → harmony / purpose / precedent.

POWER / PROCEDURE

- 3 RIGHTS → equality / proportionality.
- 4 INVALIDITY → read down / sever / strike.

CHECK / LIMIT

- 5 TIME + AUTHORITY → prospective effect / Article 141.
- VERDICT: exact tests constrain judicial choice.

FEDERAL / RIGHTS IMPACT

- 1 COMPETENCE → pith / colour / nexus / Art 254.
- 2 MEANING → harmony / purpose / precedent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 5 TIME + AUTHORITY → prospective effect / Article 141.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT DOCTRINE STACKING STANDARDS OF REVIEW DEMOCRATIC LEGITIMACY AND JUDICIAL RESTRAINT DOCTRINAL UNCERTAINTY ANSWER SYNTHESIS IDENTIFIES ENACTED TEXT AND BINDING PRECEDENT EXPLAINS THE DOCTRINAL TRIGGER

OPTIONAL DOCTRINE / CASE

- Doctrine stacking
- Standards of review
- Democratic legitimacy and judicial restraint
- Doctrinal uncertainty

ADVANCED LIMIT

- Answer synthesis
- identifies enacted text and binding precedent;
- explains the doctrinal trigger;
- gives reasons for the standard of review;

COMPARATIVE NUANCE

- distinguishes interpretation from policy choice;
- chooses a remedy no broader than necessary; and
- leaves genuine legislative gaps to the competent institution unless an enforceable
- The Core doctrine atlas is independently sufficient.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.